

25STCV22151 25STCV22151

County: los-angeles

Division: Civil Law and Motion

Department: 316

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Case Number: 25STCV22151 Hearing Date: June 24, 2026 Dept: 316

BACKGROUND

This case involves a judgment

lien. On April 28, 2025, Plaintiff 88 Special Sweet Inc. obtained judgment

against Defendant Xiao Yang Lu in the amount for \$54,890.14. On May 28, 2025,

Plaintiff secured a judgment lien on Defendant's real property. Now, Plaintiff

requests judicial foreclosure on Defendant's property.

On July 28, 2025, Plaintiff

filed a verified complaint against Defendants Xiao Yang Lu and Lu Xiao. The

complaint alleges one cause of action stemming from the facts alleged above.

On September 2, 2025,

Defendant Xiao Yang Lu filed an answer to Plaintiff's complaint.

On September 9, 2025,

Plaintiff filed a Motion to Strike Defendant's Answer ("Motion").

No opposition or reply has

been filed.

TENTATIVE

RULING

Plaintiff's

Motion to Strike Defendant's Answer is GRANTED with leave to amend.

Defendant

must file and serve an amended answer within twenty (20) days.

LEGAL

STANDARD

The

court may, upon a motion, or at any time in its discretion, and upon terms

it deems proper, strike any irrelevant, false, or improper matter

inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may

also strike all or any part of any pleading not drawn or filed in conformity

with the laws of this state, a court rule, or an order of the court. (Id.

at § 436, subd. (b).) The grounds for moving to strike must appear on the face

of the pleading or by way of judicial notice. (Id. at § 437.)

"Where

the defect raised by a motion to strike or by demurrer is reasonably capable of

cure, leave to amend is routinely and liberally granted to give the plaintiff a

chance to cure the defect in question.” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.) The burden is on the complainant to show the Court that a pleading can be amended successfully. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.)

DISCUSSION

I.

Meet

and Confer

Prior to filing a motion to

strike, the moving party is required to meet and confer with the opposing

party in person, by telephone, or by videoconference. (Code Civ. Proc., §

435.5, subd. (a).) The moving party must then submit a declaration demonstrating

their meet and confer efforts. (Id. at § 435.5, subd. (a)(3).) “A

determination by the court that the meet and confer process was insufficient

shall not be grounds to grant or deny the motion to strike.” (Id. at §

435.5, subd. (a)(4).)

Here, there is no indication

that Plaintiff attempted to meet and confer with Defendant before filing its

Motion. Furthermore, Plaintiff did not file a supporting declaration

demonstrating its meet and confer efforts. While the Court will decide the merits

of the motion, it admonishes counsel to comply with meet and confer requirements

going forward. (Code Civ. Proc., § 435.5, subd. (a)(4).)

II.

Unverified

Answer

The Court holds that Defendant

failed to comply with applicable laws when filing the answer. Thus, the Court

will strike Defendant's answer.

“When the complaint is

verified, the answer shall be verified. In all cases of a verification of a

pleading, the affidavit of the party shall state that the same is true of his

own knowledge, except as to the matters which are therein stated on his or her

information or belief, and as to those matters that he or she believes it to be

true; and where a pleading is verified, it shall be by the affidavit of a

party, unless the parties are absent from the county where the attorney has his

or her office, or from some cause unable to verify it, or the facts are within

the knowledge of his or her attorney or other person verifying the same.” (Code

Civ. Proc., § 446, subd. (a).)

Here, on July 28, 2025, Plaintiff

filed a verified complaint. (See Motion, Exh. A, p. 5.) On September 2, 2025, Defendant

filed an answer. (See Motion, Exh. B.) Defendant signed the bottom of the answer but did not verify it. (See *id.* at p. 2.) Nor did Defendant specifically respond to any of Plaintiff's allegations.

Because Plaintiff filed a verified complaint, Defendant was obligated to file a verified answer and respond to each allegation in the complaint. (See Code Civ. Proc., § 446, subd. (a).) Defendant failed to do so. (See Motion, Exh. B.) Therefore, Defendant's answer was not filed in conformity with applicable laws. For this reason, the Court shall strike Defendant's answer. (See Code Civ. Proc., § 436, subd. (b).)

Because the Court finds that the defects in Defendant's answer are reasonably capable of cure, the Court will grant Defendant leave to amend. (See *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

CONCLUSION

For the foregoing reasons, Plaintiff's Motion to Strike Defendant's Answer is GRANTED with leave to amend.

Defendant is ordered to file and serve an amended verified answer within twenty (20) days of the Court's ruling. Plaintiff to give notice.